

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-03

EUROMARKET DESIGNS, INC.

v.

MSC MEDITERRANEAN SHIPPING COMPANY SA, et al.

JOINT STATUS REPORT

Pursuant to 46 C.F.R. § 502.141(h), Complainant Euromarket Designs, Inc. (“EDI”), and Respondents MSC Mediterranean Shipping Company SA (“MSC”), Ocean Network Express Pte. Ltd. (“ONE”), Evergreen Line Joint Service Agreement (FMC#011982), Evergreen Marine Corp. (Taiwan) Ltd. (“Evergreen Taiwan”), Evergreen Marine (UK) Limited (“Evergreen UK”), Italia Marittima SpA (“Italia”), Evergreen Marine (Hong Kong) Ltd. (“Evergreen Hong Kong”), and Evergreen Marine (Singapore) Pte. Ltd. (“Evergreen Singapore” and collectively with the Evergreen Line Joint Service Agreement, Evergreen Taiwan, Evergreen UK, Italia, and Evergreen Hong Kong, “Evergreen”)¹, HMM Company Limited (“HMM”), Maersk A/S (“Maersk”), CMA CGM S.A. (“CMA”), Apex Maritime Co., Inc. (“Apex”), COSCO Shipping Lines Co., Ltd. (“COSCO”) and Wan Hai Lines Ltd. (“Wan Hai” and collectively, the “Respondents”)² met and conferred on February 14, 2025 and via email and submit this joint status report regarding the progress of discovery

¹ The Evergreen Respondents are each parties to the Evergreen Line Joint Service Agreement, FMC Agreement No. 011982, and collectively do business under the common trading name Evergreen Line.

² Respondent China United Transport, Inc. (“CU Lines”), has not yet had counsel enter an appearance in this matter and, for the purpose of this Joint Status Report, the term “Respondents” does not include the positions of CU Lines.

discussions pursuant to the January 17, 2025 Initial Order and in advance of any status conference to be scheduled between the Presiding Officer and the Parties:

On February 10, 2025, EDI served the Respondents with its initial disclosures via email pursuant to 46 C.F.R. § 502.141(b).

On February 10, 2025, Complainant requested whether each Respondent wished to participate in a CADRS preliminary conference. Complainant has held such preliminary conferences with CMA, Apex, Evergreen, via videoconference and with MSC, HMM, and Wan Hai via email and separate phone calls with CADRS on February 14, 2025. On February 18, 2025, counsel for Complainant and Maersk held a conference with CADRS through email and separate phone calls.

Based on the meet and confer discussions between the Respondents who have appeared (the “Parties”), although the Parties have differences of opinion as to the appropriate course of action with respect to discovery in light of this multi-respondent proceeding and the various motions and/or answers filed by the Respondents, the Parties believe that, if the claims against the various Respondents remain consolidated: (1) collaboration on such a discovery schedule and (2) a unified discovery schedule for all Parties—whenever that may begin—is in the best interests of the proceeding and the resources of both the Federal Maritime Commission, the Administrative Law Judges, and the Parties. The Parties’ views as to discovery are as follows, which the Parties have again endeavored to streamline for the Presiding Officer’s review.

Position of the Complainant

Complainant proposes, based on the fact that only one Respondent, CMA, has filed a fully dispositive motion and that the proceeding will continue as to the remaining parties even after the pending motions by MSC, HMM, Wan Hai, CMA, and ONE have been ruled on, that discovery should not be stayed during the pendency of those motions and should proceed as to all Parties who have appeared. It is Complainant’s position that the resolution of those matters will not substantially

alter the scope of necessary discovery in this proceeding and that the Parties should continue with such discovery to begin the process and bring discovery to a conclusion in an expedient fashion.

That said, the Complainant agrees with all other Respondents that—should discovery be stayed for some parties—discovery should be stayed for all parties, as proceeding on a joint basis has significant efficiencies as discussed in Complainant’s brief in opposition to the pending motions to stay and motion to sever. In such an instance, the Complainant would nonetheless request that the Parties, even in the absence of formal written discovery, begin to collaborate on issues such as a Joint Protective Order, a Protocol on Electronically Stored Information, and discussions regarding appropriate custodians, data sources, and possible search terms to guide discovery once it begins in earnest.

Based on the foregoing, if the Presiding Officer agrees with Complainant that discovery should commence prior to a decision on the currently-pending motions, Complainant proposes the schedule below, which provides for a discovery schedule in excess of 150 days. The Parties are mindful of the 150-day time period set by 46 C.F.R. § 502.141(g); however, the Parties anticipate that documentary discovery will be extensive, requiring the review of millions of documents and dozens of depositions. Each party will need to collect potentially relevant documents and data from their respective servers and other locations documents, process that data and load it into a database for further review, and, after this initial database has been electronically searched and narrowed, manually review potentially responsive documents based on the Parties’ written discovery requests for responsiveness, confidentiality, and privilege before the documents are prepared for production, all of which will take a significant amount of time.

The Commission’s regulations requiring that discovery be completed within 150 days of the service of a respondent’s answer may be a reasonable time in a relatively straightforward case; however, it is not realistic for a case of this magnitude in which documentary discovery likely

involves tens of millions of documents and dozens of depositions.

The Parties acknowledge that prompt resolution of claims and disputes arising under the statutes administered by the Commission is a laudable goal, one which the deadlines for issuance of initial and final decisions are intended to achieve, and that scheduling orders are an important part of this process. That said, it is not unusual for the deadlines for completion of discovery and/or for the issuance of initial and final decisions to be extended by presiding officers and the Commission in order to afford the Parties adequate and reasonable time to fulfill the discovery obligations necessary for the Parties to develop their claims and defenses.

There are also policy considerations which favor allowing sufficient time for the full development of the evidentiary record before an agency. *Hudson Shipping (Hong Kong) Ltd. d/b/a Hudson Express Lines – Possible Violations of Section 10(a)(1) of the Shipping Act of 1984*, 29 S.R.R. 1376, 1377 (ALJ 2002) (policy and responsibility of Commission and, by delegation of authority, presiding judge, to inquire into and consider all relevant facts; of even greater importance than the concept of fairness between the parties, as they maneuver to develop a record which fits their positions, is the need to ensure that justice is served and all relevant facts are considered by the Commission).

In light of the above, if the Presiding Officer is to order that discovery begin during the pendency of the present pre-answer motions, the Parties will work diligently with the goal of completing discovery in a timely and efficient manner and believe that good cause has been demonstrated to modify the 150-day deadline provided for under 46 C.F.R. § 502.141(g) and Complainant proposes the following deadlines for discovery should the Presiding Officer order that discovery begin at this time:

EVENT	PROPOSED DEADLINE
Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”) and interrogatories	March 7, 2025
Parties to serve objections and initial responses to initial RFPs	April 4, 2025
Parties to serve objections and initial responses to initial interrogatories	April 4, 2025
Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly)	April 25, 2025
Substantial completion of productions of documents and ESI in response to initial RFPs	June 20, 2025
Parties to File Joint Status Report	July 11, 2025
Complete depositions of fact witnesses	August 22, 2025
Last day to serve interrogatories, requests for admission, and RFPs	August 22, 2025
Disclosure of initial expert reports, if any	September 19, 2025
Disclosure of rebuttal expert reports, if any	October 17, 2025
Complete expert depositions	November 14, 2025
Close of discovery	November 14, 2025
Complainant’s initial brief(s), proposed findings of fact, and appendix	December 19, 2025
Respondents’ opposition briefs, responses to proposed findings of fact, proposed findings of fact, and appendix	January 23, 2026
Complainant’s reply and responses to proposed findings of fact	February 20, 2026

The Parties do not currently anticipate needing depositions or interrogatories in this case in excess of the amounts contemplated by 46 C.F.R. §§ 502.143 (i.e., no more than 20 depositions per party) and 502.145 (i.e., no more than 50 written interrogatories per party), respectively.

Position of the Respondents

1. Position of Respondents MSC Mediterranean Shipping Company, SA (“MSC”); HMM Co. Ltd. (“HMM”); and Wan Hai Lines Ltd. (“Wan Hai”)

As an initial matter, Respondents MSC, HMM and Wan Hai are stating their position in this joint status report without prejudice to their position that they are under no obligation to do so. The

filing of the initial joint status report is tied to the filing of an answer. Since these three respondents have not yet filed an answer, they are under no obligation to submit a joint status report.

Having said this, these three respondents have moved that this proceeding be stayed until final decisions have been issued in other, pending court and agency proceedings. It is the position of these three respondents that the rulings in such other proceedings have the potential to impact the scope of this proceeding significantly. For example, should the Court of Appeals rule that the failure of a carrier to provide space under a service contract is a breach of contract over which the Commission lacks jurisdiction, or overturn the Commission's decision on remand in *TCW v. Evergreen*, such a ruling would significantly impact the scope of this proceeding and necessarily impact the scope of discovery being sought. Similarly, to the extent that respondents have moved to dismiss one of the claims set forth in the Complaint, the granting of that motion would also impact the scope of this proceeding. Accordingly, it is the position of MSC, HMM and Wan Hai that no discovery should take place in this proceeding until after there has been a ruling on their respective motions and, if the motions are granted, until such time as the stay of this proceeding has been lifted. This includes discussion of and agreement on search terms, confidentiality agreements, and ESI protocols. These are items that are likely to be impacted by any change in the scope of the proceeding.

With respect to Complainant's proposed discovery schedule, the obligation to agree on a schedule attaches only after an answer to the complaint has been filed. 46 C.F.R. 502.141(h). Since none of these respondents has filed an answer, they are under no obligation to agree to a procedural schedule and respectfully decline to agree to Complainant's proposed schedule at this time. Complainant chose to name multiple respondents in a single action. It should not be permitted to use the answers filed by some respondents as a means to circumvent the regulations and force other respondents to agree to a procedural schedule sooner than required by the Commission's Rules of Practice and Procedure. This is particularly true where, as is the case here, the answer is not yet due

because of pending motions which could alter the scope of the proceeding.

2. Position of Respondent Ocean Network Express Pte. Ltd. (“ONE”)

Similar to Respondents MSC, HMM and Wan Hai, as an initial matter, Respondent ONE is contributing to this joint status report without prejudice to its position that it is under no obligation to do so. The filing of the initial joint status report is tied to the filing of an answer. Since Respondent ONE has filed a motion in response to the Complaint and has not yet filed an answer, it is under no obligation to submit a joint status report or begin the CADRS process.

More specifically, Respondent ONE’s motion to sever and for a more definite statement of claims is based on the fact that Complainant EDI has erroneously sought to litigate unrelated claims against unrelated carriers in a single proceeding. The net result is that all of the Respondents are forced to deal with unnecessarily complicated and confusing claims. Proceeding with discovery will only improperly enhance and multiply the burden on Respondent ONE and the other Respondents. Respondent ONE also notes that the underlying basis of the pending motions to stay filed by the other Respondents could ultimately impact all of the respondents.

Accordingly, it is also the position of Respondent ONE that no discovery should take place in this proceeding until after there has been rulings on all the pending motions and, if stay motions are granted, until such time as the stay of this proceeding has been lifted.

With respect to Complainant’s proposed discovery schedule, the obligation to agree on a schedule attaches only after an answer to the complaint has been filed. *See* 46 C.F.R. 502.141(h). Since Respondent ONE has not yet filed an answer, ONE is under no obligation to agree to a procedural schedule and respectfully decline to agree to Complainant’s proposed schedule at this time. Again, Complainant EDI chose to name multiple respondents in a single action. For the same reasons set forth by Respondents MSC, HMM and Wan Hai, Complainant EDI should not be permitted to use the answers filed by some respondents to force other respondents to agree to a

procedural schedule sooner than required by the Commission's Rules of Practice and Procedure.

3. Position of Respondent CMA CGM S.A. ("CMA")

CMA concurs with Respondents MSC, HMM, Wan Hai, and ONE.

4. Position of the "Evergreen Line" Respondents as identified in Paragraph 1 of this Joint Status Report

Evergreen Line ("Evergreen") agrees with the position of Respondents MSC, HMM, Wan Hai, ONE and CMA CGM S.A. as above. The distinction between those Respondents and Evergreen Line is technical, not one going to the substance of the positions outlined. Evergreen Line could, for example, file motions to place themselves in effectively the same position as the other Respondents above mentioned. Necessarily, any decision as to any Respondent on the specificity of the Complaint or severance must apply as well to Evergreen

On the substance, the Complaint is both fatally unspecific as to Evergreen and includes parties from which Evergreen should be severed, all as more fully explained in the positions above outlined and filed motions in this matter.. The position of the above Respondents offers an economy of both the Commission's time and resources as well as the individual Respondents involved. It would be wasteful at a very meaningful level to have discovery proceed until the crucial issues of the Complaint's specificity and severance of the Respondents are resolved. It is simply wrong to suggest that a more specific Complaint identifying clearly articulated issues and facts would not favorably impact the discovery burdens imposed on Evergreen; in contrast to the present Complaint, uncertain as it is, as to facts and causes of action. Similarly, the improper entanglement of Evergreen with the other Respondents, just as a matter of common sense, must necessarily greatly broaden the discovery burden of Evergreen. Equally, as above noted, other proceedings, including US Federal Appellate Court decisions on core issues in the case at bar are imminent. Waiting for same would work no prejudice to Complaint which took over three years past the events at issue to file a Complaint. For all those reasons and others more fully set forth by the above Respondents proceeding with discovery

before resolution of the fundamental issues discussed makes no sense and would be a significant waste of judicial resources and the resources of all the Respondents.

Should the above position not be agreed to by the Presiding Officer then Evergreen is in general agreement with the positions taken by the Complainant regarding the unified handling of discovery deadlines and that the 150-day deadline for discovery makes little sense in the context of the present Complaint. The proposed schedule offered by the Complainant is generally reasonable under the circumstances for the reasons set forth by the Complainant.

5. Position of Respondent MAERSK A/S

Maersk concurs with all the other Respondents' positions, including that this case should proceed with a unified discovery schedule for all parties. Discovery should be stayed until certain Respondents' motions are resolved and the stay is lifted. Pending the disposition of Respondents' motions and commencement of formal discovery, Maersk is agreeable to cooperating with EDI on a joint protective order, protocols for electronic information and disclosure of data sources. Maersk also concurs that the usual 150-day discovery period will not afford the parties sufficient time in view of the magnitude of this case involving numerous parties, witnesses, and voluminous documents. Thus, the 150-day discovery period should be extended

6. Position of Respondent Apex Maritime Co., Inc.

Apex concurs that discovery should be stayed until the pending motions are resolved and further that the 150-day discovery period will be insufficient.

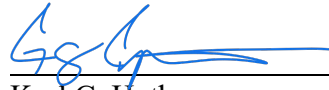
7. Position of Respondent COSCO Shipping Lines Co., Ltd. ("COSCO")

COSCO concurs that discovery should be stayed until the pending motions are resolved.

Dated: February 18, 2025

Respectfully submitted,

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Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondents by emailing copies of those documents to the counsel of record listed below:

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